

LEGAL BRIEF FOR COUNSEL

Client: Test User
Matter: Non-Consensual Deepfake - Takedown & Damages
Report ID: 60180E4FC8D448BC

EXECUTIVE SUMMARY

Deepfake content impersonating our client has been detected and disseminated across 2 platforms. Technical analysis (AI score: 95.00%) confirms this is manipulated media created without consent.

IMMEDIATE RELIEF: Injunction for content removal + account suspension
DAMAGES CLAIM: Defamation, emotional distress, reputational harm

APPLICABLE LAW & LEGAL BASIS

SECTION_66
Section 66 - Computer Misuse (Hacking): Whoever commits offence of computer misuse shall be punishable with imprisonment up to 3 years and fine up to Rs 5 lakhs.

SECTION_67
Section 67 - Publishing obscene material in electronic form: Punishable with imprisonment up to 3 years and fine up to Rs 5 lakhs.

SECTION_67A
Section 67A - Publishing material containing sexually explicit act/conduct in electronic form: Punishable with imprisonment up to 5 years and fine up to Rs 10 lakhs.

SECTION_354
Section 354 (IPC) - Assault or Criminal Force with Intent to Outrage Modesty: Punishment - imprisonment up to 3 years and/or fine up to Rs 2,000.

SECTION_354C
Section 354C (IPC) - Voyeurism: Punishment - imprisonment up to 3 years and/or fine up to Rs 2,000.

SECTION_354D
Section 354D (IPC) - Stalking: Punishment - imprisonment up to 3 years and/or fine up to Rs 10,000.

STRATEGIC RECOMMENDATIONS

- PHASE 1 (IMMEDIATE - 24-48 HRS):
- Send cease & desist to platforms
 - File urgent takedown requests
 - Register police complaint (cybercrime.gov.in)
- PHASE 2 (SHORT TERM - 1-2 WEEKS):
- Identify perpetrator through platform cooperation
 - Assess damages (reputational, emotional, financial)
 - Prepare civil suit under Tort law
- PHASE 3 (MEDIUM TERM - 2-6 MONTHS):
- Criminal prosecution under IT Act Section 67A
 - Civil damages case in District Court
 - Injunction against further distribution